

Waseem v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT - C No. 20693 of 2022 · **Writ disposed; para 6.8 objection with stay of coercive recovery.**

HEADNOTE

Without examining merits, a challenge to a 30 May 2022 recovery notice was disposed of by relegating the consumer to an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, to be decided after hearing within a fixed time, with a short stay of coercive recovery.

FACTUAL SUMMARY

Waseem filed a writ in the Allahabad High Court seeking certiorari to quash a recovery notice dated 30 May 2022 issued by the distribution licensee (respondent no. 3). Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The Division Bench of Surya Prakash Kesarwani and Jayant Banerji JJ. heard both sides on 5 August 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery notice as alternate remedy

HOLDING

A consumer challenging a recovery notice may be relegated, without any opinion on merits, to an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. If the objection is filed within four weeks, it shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action on the demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the 30 May 2022 recovery notice was disposed of by sending the consumer to a para 6.8 objection before the Executive Engineer, with no opinion on merits. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Executive Engineer was directed to decide the para 6.8 objection after hearing within four weeks of filing, and coercive recovery was stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 30.5.2022

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1